

9” and “JUDGE: Devine,” the former department and assigned judge. **This matter has been reassigned for purposes to Department 34.** No amended notice of motion appears of record on the docket.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is CONTINUED to **June 29, 2026, 9:00 a.m.**, in **Department 34** of the Court.
2. Petitioner to give notice and file proof of service on Respondent of such amended notice and the underlying motion papers.

20. 9:00 AM CASE NUMBER: N25-2269

CASE NAME: PETITION OF: ELAINE LAVAN

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF DEFENDANT'S ANSWER**

FILED BY: LAVAN, ELAINE

TENTATIVE RULING:

Petitioner’s motion to strike portions of California State Approving Agency for Veterans Education’s answer is **granted as to affirmative defenses one and three with leave to amend, and otherwise the motion is denied.** CSAAVE may file and serve an amended answer within 10 days of notice of entry of this order.

CSAAVE’s answer included four affirmative defenses: (1) Failure to Mitigate, (2) Laches, (3) Waiver and Estoppel, and (4) Unclean Hands. Petitioner filed this motion to strike the affirmative defenses. Petitioner’s argument is that these affirmative defenses are unsupported by factual allegations, which is really an argument for a demurrer to an affirmative defense. (See, e.g. *Corrigan v. Stiltz* (1965) 233 Cal.App.2d 381, 386.) CSAAVE opposed this motion on the merits and thus, waived this procedural defect.

To the extent Petitioner is seeking to strike the affirmative defenses as irrelevant, false or improper, the Court denies that request.

The main issue here is whether CSAAVE has sufficiently pled its affirmative defenses. Generally, an answer must allege some facts to support the affirmative defenses. (See *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 384; see also *Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal. App. 4th 1532, 1546.) Although facts need not be alleged when bringing an affirmative defense based upon the statute of limitations. (Code of Civil Procedure section 458.)

In the first affirmative defense, CSAAVE alleges a failure to mitigate damages based upon the following facts: “Petitioner failed to take reasonable steps or make a reasonable effort to mitigate her disapproval of her application and any claimed damages, if any, as a result of such denial.” In their opposition CSAAVE explains what efforts Petitioner could have taken, however, those facts are not alleged here. Therefore, the Court grants the motion to strike the first affirmative defense with leave to amend.

In the second affirmative defense, CSAAVE alleges that the petition is barred by laches. The affirmative defense of laches requires pleading facts that give rise to that defense, or relying facts on the face of the petition. (*Hollenbeck Lodge (486) I.O.O.F. v. Wilshire Boulevard Temple* (1959) 175 Cal.App.2d 469, 475.) Here, CSAAVE clarified that this defense is based upon Petitioner's failure to act between August 26, 2025, and November 20, 2025. The petition was filed on November 20 and it alleges that CSAAVE denied Petitioner's application on August 26. (Pet. ¶1 and date petition was filed.) Thus, the defense of laches is sufficiently alleged. Therefore, the motion to strike the second affirmative defense is denied.

In the third affirmative defense, CSAAVE alleges that the petition is barred by waiver and/or estoppel. In the opposition, CSAAVE argues that some of facts in the petition support waiver, but they did not include those facts here. Therefore, the Court grants the motion to strike the third affirmative defense with leave to amend.

In the fourth affirmative defense, CSAAVE alleges that the petition is barred by the doctrine of unclean hands as Petitioner makes false statements in her petition. The Court finds that CSAAVE has included facts to support this affirmative defense. Therefore, the motion to strike the fourth affirmative defense is denied.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM**
INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

22. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL**
INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.